

Shivlal Jaiswal v. State of U.P. and Others

High Court of Judicature at Allahabad · Division Bench · 31 January 2023 · WRIT - C No. - 3366 of 2023 · **Writ disposed; recovery citation withdrawn; fresh order under the Supply Code.**

HEADNOTE

The Allahabad High Court disposed of a writ against a recovery citation for electricity-theft dues on the Electricity Department's statement that the citation dated 16 December 2022 had been withdrawn and that a fresh order would be passed after following the procedure prescribed under the Electricity Supply Code, 2005.

FACTUAL SUMMARY

Shivlal Jaiswal challenged a recovery citation dated 16 December 2022 issued by respondent no. 4 for electricity dues in a theft case. The State of U.P. and three others were respondents. At the hearing, counsel for the Electricity Department placed on record a letter of the Executive Engineer dated 23 January 2023 and stated that the impugned recovery had been withdrawn and that a fresh order would be passed after the procedure prescribed under the Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::procedure

Withdrawal of theft recovery and fresh order under the Supply Code

HOLDING

The petition was disposed of in terms of the Electricity Department's statement that the recovery citation dated 16.12.2022 stood withdrawn and that a fresh order would be passed after following the procedure prescribed under the Electricity Supply Code, 2005. ¶ 1

FLAG No clause number is given; the order refers only to the procedure prescribed under the Electricity Supply Code, 2005.

PRINCIPLE TAGS

UP-2005::procedure The writ was disposed on counsel's statement that the 16.12.2022 recovery citation for theft dues was withdrawn and that a fresh order would follow the procedure prescribed under the Electricity Supply Code, 2005, without the Court identifying or construing any clause. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER ANY ELECTRICITY-THEFT DUES WERE RECOVERABLE, AND IN WHAT AMOUNT

The Court did not examine the theft allegation or the withdrawn citation on merits. A fresh order under the Supply Code was left to the Department. ¶ 1